পঞ্জীভুক্ত নম্বৰ - ৭৬৮ /৯৭ Registered No.-768/97

# অসম ৰাজপত্ৰ

সত্যমেব জয়তে

# THE ASSAM GAZETTE

## অসাধাৰণ

## EXTRAORDINARY

## প্ৰাপ্ত কৰ্ত্তৃত্বৰ দ্বাৰা প্ৰকাশিত

## PUBLISHED BY THE AUTHORITY

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No. 20 Dispur, Thursday, 12th January, 2023, 22nd Pausa, 1944 (S. E.)

GOVERNMENT OF ASSAM

ORDERS BY THE GOVERNOR

ENVIRONMENT AND FOREST DEPARTMENT

**NOTIFICATION**

The 12th January, 2023

**eCF No. 237152.-** WHEREAS, the Government of Assam had notified vide No. FRM.69/97/Pt./1 dated 15/02/2000 the Assam Wood Based Industries (Establishment and Regulation) Rules, 2000 for regulating the operation of Wood Based Industries in the State of Assam.

AND WHEREAS, the Wood Based Industries (Establishment and Regulation) Guidelines, 2016 issued by the Ministry of Environment, Forests and Climate Change, Government of India, requires the States to conform their rules according to these guidelines.

Now, therefore, in exercise of the powers conferred by sub-section (2) of section 40 of the Assam Forest Regulation, 1891 (Regulation 7 of 1891) the Governor of Assam is pleased to make the following rules in conformity with the Wood Based Industries (Establishment and Regulation) Guidelines, 2016 and in supersession of Assam Wood Based Industries (Establishment and Regulation) Rules, 2000, namely:-

Short title and commencement

1. (1) These rules may be called the Assam Wood Based Industries (Promotion and Development) Rules, 2022.

(2) They shall come into force on the date of their publication in the Official Gazette.

Definitions

2. (1) In these rules, unless the context otherwise requires,-

(a) "Act" means Assam Forest Regulation, 1891 (Regulation 7 of 1891);

(b) "Agarwood plant" means *Aquilaria malaccensis* (in Assamese *Sanchi*), or any other species of the genus *Aquilaria* from which ethereal oils are extracted;

(c) "Agar Oil" means the oil extracted from agar wood, both in the oil and fatty acid (Boya oil) forms;

(d) "Agar wood Dust" means the dust obtained as the bye-product during the process of production of Agar Oil in Agar Oil Extracting Unit;

(e) "Agar Wood procured from within India" means the agar wood materials procured only from agar trees grown and harvested from private land, plantations, agro-forestry plantations and plantations raised on non-forest Government lands etc., from the State of Assam or other States or Union of India, and not otherwise, and transported under valid and proper transit documents issued by the Forest Divisions concerned;

(f) "Agarwood Oil Trader" means person, associations, Organizations, firms associated with export and import of Agarwood derivatives, extract and Agar oil including registration certificate holder of Agarwood and Oil Industry in the State of Assam;

(g) "Agar Wood-Based Industrial Unit" means Wood-Based Industrial Units in which or in any part of which, Agarwood is processed and belonging to following categories:-

(I) "Agar wood processing units" means Wood-Based Industrial Units in which or in any part of which, Agarwood is processed into chips etc.

(II) "Agar oil extracting units" means Wood-Based Industrial Units in which, or in any part of which, distillation and extraction of oil from the agar wood is carried out. These shall be in following categories: -

(i) Micro Units with Boilers, Vessels with aggregate capacity up to 500 Kg.

(ii) Small Units with Boilers, Vessels aggregate capacity from 501kg to 1000 Kg.

(iii) Medium Units with Boilers, Vessels with aggregate capacity from1001 kg to 2000 Kg.

(iv) Large Units with Boilers, Vessels more than 20 (twenty) in number or with aggregate capacity of more than 2000 Kg.

(III) "Composite Agar Wood Based Unit" means a Secondary Wood-Based Industrial Unit combining partly or fully features, characteristics, properties, nature of Agar Oil Extracting Unit (s) as well as in full or part that of Agar Wood Processing Unit etc;

(h) "Artisan" means a person actively engaged in the economic or a livelihood activity in a Wood-Based, Bamboo-Based skilled trade, including one that involves making things by hand;

(i) "Authorized Officer" means a Divisional Forest Officer in-charge of the Territorial, Wildlife Division having territorial jurisdiction over the area where the Wood Based Industrial Units are located in the State of Assam including Council areas;

(j) "Certificate of Origin" means a certificate or a document testifying the origin of the product, as defined under these rules, issued by the Divisional Forest Officer having jurisdiction over the area from where the raw material used in making of the product originated, to the owners, legal title holders, legal assigns, owning the product or raw materials, for traceability of the origin of the product, under the due process established by The Assam Trees Outside Forest (Sustainable Management) Rules 2022, as amended from time to time;

(k) "charcoal" means a form of carbon derived from incomplete combustion of wood derived from a tree;

(l) "CITES" means Convention on International Trade in Endangered Species of Wild Fauna and Flora;

(m) "Department" means Assam Forest Department;

(n) "Diversification of existing unit" means establishing different activity, product line on the same premises to improve the efficiency, viability of the existing Unit or ensure value addition;

(o) "Expansion of existing unit" means enhancement of capacity by at least 25% of the existing capacity of the Wood-Based Industrial unit;

(p) "Form" means a form appended to these rules;

(q) "Furniture Unit" means plants and machinery and the premises including the precincts thereof in which or in any part thereof wood-based finished products are manufactured using sawn timber, cane, bamboo, reed, plywood or any other wood-based product, except a round log, outsourced from licensed wood based industrial units or other legitimate sources and operating without a band saw or re-saw or circular saw of more than thirty-centimetre diameter, employing not less than 10 labourers;

(r) "Green Fee Fund" means Green Fee Fund as created under these rules;

(s) "Government" means the Department of Environment and Forest, Government of Assam;

(t) "Hard board, particle board manufacturing unit" means a Wood-Based Industrial Unit in which, or in any part of which, conversion of Forest produce into hard board, particle board is carried out;

(u) "Imported Agar Wood chips and dust" means the Agar Wood chips and dust imported, from outside India in to the State of Assam, fulfilling CITES terms and conditions and extant Import Rules and Regulations in force;

(v) "Industrial Estate" means areas, notified by the State Government for the establishment of Primary and Composite Wood-Based Industrial Units, as per guidelines issued by the Ministry of Environment, Forests and Climate Change, Government of India from time to time;

(w) "Katha manufacturing unit" means a Wood-Based Industrial Unit in which, or in any part of which, conversion of Khoir (Acacia catechu) wood into Katha is carried out;

(x) "Legal Procurement Certificate (LPC)" means a certificate issued as per the format prescribed as per the provisions contained in these rules (FORM- XXV), having and conforming, to the exporters of product as defined in these rules and conforming to the provisions contained in the Convention on The International Trade in Endangered Species of Wild (Fauna, Flora, Derivatives), for obtaining export permit under CITES, by the local forest department official duly authorized by the Chief Wildlife Warden, under provisions of the Wildlife Protection Act 1972, as amended, to establish the legality of the consignment or product;

(y) "License" means a License granted under these rules;

(z) "Licensing Authority" means the Divisional Forest Officer having jurisdiction over a particular Primary Wood-Based Industrial Unit.

(aa) "Match splint, match manufacturing unit" means a Wood-Based Industrial Unit in which or in any part thereof, conversion into required size, slicing, peeling, fashioning or seasoning of timber, wood, including preservation and treatment thereof either by mechanical or chemical process with the aid of electrical or mechanical power or manually is carried out;

(ab) "Nodal Officer" means the Member-Secretary of the State Level Committee constituted under these rules;

(ac) "Principal Chief Conservator of Forests and Head of Forest Force" means a Forest Officer of the rank of Principal Conservator of Forests designated by the Government of Assam, as the Head of the Forest Force in the State of Assam;

(ad) "Processed Agar Wood incense sticks" means the incense sticks made using agar dust processed out of legally procured stock of agar wood raw materials;

(ae) "Product" under these rules, means any product, material, output, by-product, material waste produced in a Wood-Based Industrial Unit established under these rules or includes products such as the wood, timber, sawn timber or its parts or derivatives or products of any other transformation or conversion thereof, sawn timber, Veneer, saw dust, Katha, Charcoal, Agar Oil, Agar Chips, Boya Oil, Agar dust, Sandalwood oil, Sandal wood carvings other essential oils etc;

(af) "Property Mark" means a mark, hammer impression, any other mark, issued by the Forest department to the License-holder, Registration Certificate-holder of a Wood-Based Industrial Unit, to be used by affixing the mark, impression on the surface of the product produced, manufactured in that particular Unit under these rules;

(ag) "Registering Authority" means the Divisional Forest Officer having jurisdiction over a particular Secondary Wood-Based Industrial Unit under these rules;

(ah) "Registration Committee" means the committee appointed for the purpose of disposing the application for grant or renewal of registration certificate for Secondary Wood-Based Industries under these rules;

(ai) "Registration Certificate" means a Certificate issued to Secondary Wood-Based Industrial Units by the Registering Authority under these rules;

(aj) "Round log" means a piece of wood in its natural form having mid girth of thirty centimetre or more under bark and it includes such round log even after its bark has been removed or its surface has been dressed, manually or by using a band saw or any other machine or equipment to make its cross-section square or near-square for the purpose of ease in its transportation or storage;

(ak) "Saw Mill" means a Primary Wood-Based Industrial Unit having a fixed structure or enclosure for conversion of Round logs into sawn timber may be carried out with the aid of electrical or mechanical power or manually;

(al) "State Level Committee" means a Committee Constituted by the Government of Assam under these rules;

(am) "Veneer Mill or Plywood Mill" means plants and machinery the premises in which or in any part thereof, conversion into required size, slicing, peeling, fashioning or seasoning of timber, wood including preservation and treatment thereof either by mechanical or chemical process with the aid of electrical or mechanical power or manually is carried out;

(an) "Website or portal" means <assamforestonline.in> or any other *url* identified by the Department from time to time to be used for all online transactions under these rules;

(ao) "Wood-Based Industrial Unit" means any industry which processes wood as its raw material ( Saw mills, veneer, plywood, pulp or any other form such as sandal, katha wood, Agar wood etc.) .

I. "Primary Wood-Based Industrial Unit" means any Wood-Based Industrial Unit which processes wood (Round logs) as its raw material, having a band saw or re-saw or circular saw of more than thirty centimetres in diameter, such as, but not limited to, Saw Mills, veneer mills, plywood mills etc or other wood-based industries or any other such Unit, which require a license under these rules to establish, run and operate;

II. "Secondary Wood-Based Industrial Unit" means Wood-Based Industrial Unit or processing, manufacturing units, plants or commercial shops or furniture units such as, but not limited to, hard board, particle board, Block board, Medium Density Fibre board manufacturing units (solely using sawn timber as raw material), not operating with a band saw or re-saw or circular saw of more than thirty centimetres in diameter, or,

(A) not using Round logs, as defined in these rules, such as units using solely,-

(i) sawn timber, cane, bamboo, reeds, plywood, veneers, and other Non-Timber Forest Produce etc;

(ii) block board, Medium Density Fibre board or similar wood-based products;

(B) using timber of species, such as,-

(i) Agar (*Aquilaria malaccensis*) or any other species of the genus Aquilaria from which essential oils and other derivatives such as Agar chips and extraction of Agar Oil are extracted;

(ii) Sandalwood (Santalum album) for processing of Sandalwood oil, Sandalwood carvings and other derivatives thereof;

III. "Composite Wood-Based Industrial Unit" means a Wood-Based Industrial Unit combining partly or fully features, characteristics, properties, nature of a Primary Wood-Based Industrial Unit as well as in full or part that of Secondary Wood-Based Industrial Unit as defined in these rules, such as, units manufacturing Block Board, Medium Density Fibre Board, Match Wood factories, Units having Saw Mills, joinery Units, furniture Units, seasoning plants in combination, stand-alone Seasoning and Timber treatment units etc;

(ap) "Year" means a calendar year i.e., from 1st day of January to 31st day of December of the or the period between the day of grant, renewal of License, Registration in a particular year and the corresponding preceding day of the next year;

(2) Words and expressions used in these rules but not defined in these rules shall have the same meaning respectively as assigned to them in the Act.

Constitution of the State Level Committee

3. (1) The Government of Assam shall constitute a State Level Committee (SLC) to perform the function stipulated in these rules.

(2) The State Level Committee shall consist of the following members, namely:-

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| (i) | Principal Chief Conservator of Forests and Head of Forest Force, Assam | - | Chairperson |
| (ii) | A representative of the Regional Office, Guwahati of the Ministry of Environment, Forest and Climate Change, Government of India | - | Member |
| (iii) | Principal Chief Conservator of Forests, Addl. Principal Chief Conservator of Forests, Chief Conservator of Forests in-charge of territorial zone having jurisdiction | - | Member |
| (iv) | Director or Additional Director of Department of Industries | - | Member |
| (v) | Chairman or Member-Secretary of Assam Pollution Control Board | - | Member |
| (vi) | A representative of each of the Autonomous District Council | - | Member |

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| | constituted in accordance with the provision of the Sixth Schedule of the Constitution. | | |
| (vii) | An officer not below the rank of Conservator of Forests working in the office of the Principal Chief Conservator of Forests and Head of Forest Force, Assam | - | Member Secretary |

(3) The State Level Committee may co-opt an officer from territorial wing of the Forest Department not below the rank of Conservator of Forest (CF) and officers from Department of Agriculture and Department of Revenue of Government of Assam.

(4) The State Level Committee shall meet at least once in three months.

(5) The quorum of the State level Committee meeting shall be at least fifty-percent of the permanent Members.

(6) The State Level Committee shall invite representative of the Wood-Based Industry nominated by the Saw Mill Association and other trade associations dealt under these rules, as a special invitee to each and every meeting of the State Level Committee.

Powers and functions of the State Level Committee

4. The State Level Committee (SLC) shall exercise the following powers and functions, namely:-

(i) periodically assess the availability of timber in the State by way of an appropriate study on demand and supply as and when it decides. State Level Committee shall devise suitable mechanism for sustainable use of timber in a way that it does not affect the forests of the State adversely;

(ii) approve the name of the Primary Wood-Based Industries which may be considered for grant of fresh License or enhancement of the existing licensed capacity, transfer of unit, change of ownership, in case the State Level Committee is satisfied that timber is available for the functioning of said new Primary Wood-Based Industries in a sustainable manner (from sources such as Trees out-side forest, Forests, etc);

(iii) examine and make appropriate recommendation to the Government of Assam on the issues related to the establishment and regulation of Wood-Based Industries in State of Assam;

(iv) for the purpose of monitoring and regulation of Licensed, registered units, State Level Committee may prescribe industry-specific forms under these rules or issue guidelines, if any, as and when the need arises;

(v) examine and make appropriate recommendations on any other matter referred by the Government of Assam to the Ministry of Environment, Forest and Climate Change, Government of India.

(vi) the State Level Committee shall exercise its powers through the Member-Secretary or Nodal Officer.

(vii) in order to fulfill its objectives as laid down in the rules, the State Level Committee shall have the powers to,-

(a) hire consultants, experts, professionals;

(b) procure IT and Non-IT infrastructure;

(c) appoint Secretarial, computational resource on contract basis;

(d) Purchase, procure, hire office space, office infrastructure, office stationery, consumables;

(e) acquire logistic services for travel etc;

(f) organize workshops, conferences, seminars etc;

(g) work for innovations in Wood-Based technology, research and development and linkages with Climate change mitigation;

(h) run periodicals and information systems for the benefit of Wood-Based Industries.

(viii) the expenditure of the State Level Committee (SLC) for its activities shall be met from the interest accrued from the Green Fee Fund.

Estimation of annual requirement of timber by Wood Based Industries

5. (1) For the purpose of assessing the timber requirement, the Saw mills shall be divided into (a) Saw mills less than 10 HP, (b) Saw mills between 10 and less than 20 HP, (c) Saw mills between 20 HP and less than 40 HP, (d) Saw mills between 40 and less than 60 HP, and (e) Saw mills from 60 HP and above.

(2) The annual requirement of round log for Saw Mills of different capacities shall be fixed by the State Level Committee based on the technical data arising out of a study by a reputed institute or as per the formula circulated by the Ministry of Environment, Forests and Climate Change, Government of India, as given below::-

(a) Saw mills less than 10 HP: 540 Cubic Meters (base value);

(b) Saw mills between 10 and less than 20 HP: 810 Cubic Meters (1.5 times of the base value);

(c) Saw mills between 20 and less than 40 HP: 1080 Cubic Meters (2 times of the base value);

(d) Saw mills between 40 and less than 60 HP: 1620 Cubic Meters (3 times of the base value); and

(e) Saw mills from 60 HP and above: 2160 Cubic Meters (4 times of the base value).

(3) The Wood-Based Industry shall maintain and regularly update records as per the formats prescribed under these rules.

(4) Issue of fresh Licenses would depend upon the availability and supply of raw materials vis-à-vis consumption and production of existing Wood-Based Industries.

(5) The State Level Committee may consider additional licensing if the unit applying for fresh License agrees to fund the captive plantation projects in the department.

(6) The existing unit shall also be encouraged to participate in the captive plantation projects in the department if they desire to increase the capacity of the units.

Restriction on location of Wood-Based Industries

6. (1) Wood-Based Industries may be established in an industrial estate as defined in these rules.

(2) The sub-rule (1) above shall not apply to the Secondary Wood-Based Industrial units:

Provided that such a unit is not a part of a Composite Wood-Based Industry.

Grant, renewal and revocation of a License to Primary and Composite Wood-Based Industrial Units:

7. (1) No Primary and Composite Wood-Based Industrial Units shall be established or operated in the State without a valid License granted under these rules.

(2) No License to a Primary and Composite Wood-Based Industry shall be granted or renewed without obtaining prior approval of the State Level Committee. However, a State Level Committee may delegate the power of renewal of License to a Wood-Based Industry to the Divisional Forest Officers of the forest divisions concerned.

(3) No person shall undertake diversification or expansion of existing unit without prior permission of State Level Committee, without paying fees and levies as determined by the State Level Committee.

(4) (i) Any person desirous of setting up of a new Primary Wood-Based Industrial Unit/Composite Unit shall prepare a Detailed Project Report (DPR) indicating the technology, machinery and equipment, planned capacity, water and power requirement, manpower and skill requirement, sustainable source of raw materials from Trees outside Forest (ToF), market feasibility study, capital and operational outlays, compliance mechanism and mitigation strategies for reduction of carbon emissions and fulfilment of requirements under Environment Protection Act 1986 and Plan for raising Captive Plantation.

(ii) The Detailed Project Report (DPR) shall be submitted online to the Divisional Forest Officer concerned, who in turn shall forward the same along with his comments to the Expert Appraisal Committee (EAC), to be notified by the Principal Chief Conservator of Forest and Head of Forest Force, Assam from time to time. The Expert Appraisal Committee (EAC), among other members and experts shall include the Zonal in-charge and Circle Conservator concerned. The Expert Appraisal Committee (EAC) shall primarily examine sustainability model from the point of view of raw materials, pressure on the forests, carbon footprint and the environmental safeguards. If the Detailed Project Report (DPR) is found reasonable, the Expert Appraisal Committee (EAC) may accept or reject otherwise or may seek amendments.

(5) Any person, seeking a license under these rules, shall make an application, in online mode through the website or portal, in FORM-I specifying that the applicant wants a License to establish operate expand Wood-Based Industries.

(6) Documents to be uploaded along with the application for License: -

(a) Registration Certificate of the Firm Society Partnership or Company.

(b) Detailed Project Report (DPR) duly accepted by the Expert Appraisal Committee (EAC).

(c) Registration Certificate of the unit in Industries Department.

(d) Consent to establish from Pollution Control Board.

(e) Document showing ownership, allotment of land, lease deed.

(f) Copy of Receipt of application fee.

(g) Location map of the unit showing the approach road and location in the Industrial Estate.

(7) Each application shall be accompanied by a non-refundable application fee to be paid in online mode through the website or portal:

(a) Sawmill and any Primary Wood-Based Industry other than listed below:
-Rs. 5,000/- (Rupees Five Thousand Only)

(b) Veneer mill, Plywood mill, Hard board, Match manufacturing unit:
-Rs. 10,000/- (Rupees Ten Thousand Only)

(8) On successful submission of the online application in FORM-I, the portal shall automatically generate an acknowledgement receipt with seal and date and the same shall be issued online to the applicant. The application shall be scrutinized by the Divisional Forest Officer concerned for its completeness and he shall examine the factual details, feasibility of the proposal including availability of raw materials, carry out site inspection etc for establishment, expansion of the Primary Wood-Based Industry. Any deficiency in the application will be communicated online to the applicant for correction. The applicant may rectify the deficiencies and re-submit the application online. The Divisional Forest Officer concerned, once satisfied with the completeness of the said application shall forward his findings, comments, recommendation along with certified maps, GIS, location Maps and proper Geo-Coordinates, to the next level i.e., Officer in-charge of Circle concerned within 30 (Thirty) working days from the date of receipt of the complete application. The application shall be processed online at Circle –level and Zonal-level within 7 (Seven) working days' time at each level, otherwise once the time limit is crossed the application will automatically move to the next level and finally to the Nodal Officer. The Nodal Officer will in turn place the same for considering it by the State Level Committee in the next meeting. Authorities at each level shall apply due diligence while forwarding and recommending the said application.

(9) After considering the application from in all aspects, the State Level Committee shall dispose the application, within 30 (thirty) days, as it deems fit, after making appropriate inquiries, if required.

(10) Final approval for issue of license shall be subject to deposition of one-time payment of non-refundable License fee for a period of 5 (Five) years, during the currency of the License, to the Department, as specified below or as determined by the State Level Committee as and when required from time to time, in online mode through the website or portal:

(a) Saw Mill and any Primary Wood-Based Industry other than listed below: –
Rs 1,00,000/- (Rupees One Lakh Only)

(b) Veneer Mill, Hard Board manufacturing unit:-
Rs 2,00,000/- (Rupees Two Lakh Only)

(c) Ply wood Mill, Match manufacturing unit:-
Rs 4,00,000/- (Rupees Four Lakh Only)

(11) On being approved by the State level Committee for grant of a License, the same shall be communicated to the Divisional Forest Officer concerned online by the Nodal Officer, with copy to all concerned, who shall be authorized to grant a license accordingly to the applicant. The Divisional Forest Officer concerned, after receiving all the applicable fees, may then grant license, within 6 (Six) days working of receipt of said communication from State Level Committee (SLC), in the FORM-II for 5 (five) years from the date of grant of license. In case any discrepancy is noticed in the application or supporting, documents at any point of time during application process or even after grant, renewal of License, it may be cancelled by the Divisional Forest Officer concerned with the prior approval of State Level Committee.

(12) Terms and conditions of License:

(a) A property mark as approved by the Divisional Forest Officer concerned must be registered and only that mark must be used on all timbers received and dispatched from the Wood-Based Industry.

(b) Timbers bearing no property mark, import invoice and or Government hammer mark must not be received in the Wood-Based Industry or stacked within its premises.

(c) All timbers received in the Wood-Based Industry, except timber from those tree species which are grown on non-forest land and enlisted in Rule no, 5 (1) of the

Assam Trees Outside Forest (Sustainable Management) Rules 2022, must be covered by the certificate of origin or trade permit or transit pass.

(d) Stock of Round logs/timbers, received, converted, dispatched in the Wood-Based Industry, belonging to the Species that are exempted in the State of Assam from obtaining prior permission for felling and transportation, must be entered in the stock register including all the details such as the name and address of the person who brought the said round logs, timber along with all supporting documents.

(e) Any timber, forest produce seized in the industry's premises by any Forest Officer, in case the Seizing Officer is not in a position to transport the seized materials to the safe custody of the department, must be taken charge of by the owner of the industry under proper Zimmanama or any other person and be produced whenever required.

(f) Every licensee shall submit to the authorized officer concerned a quarterly report of opening stock balance, receipt of raw materials, conversion, dispatch of converted product and closing stock balance of forest produce, within seven days of the expiry of the period of the said three months in FORM-VIII appended to these rules which shall be compiled from the Register maintained in the FORM-V, VI and VII appended to these rules.

(g) The Primary Wood-Based Industrial unit other than Veneer mill, Plywood mill, Hardboard/Particle board factory must not run from dusk to dawn.

(h) Breach of any of the above conditions or infringement of any law of the State for the time being in force shall render this License to be cancelled.

(i) Repeated commission of forest offence for 3 (three) times shall render License liable for cancellation.

(j) In the event of any dispute arising between the holder of this License and the Forest Department as regards interpretation of rules made in the License or in its execution, the decision of the Zonal in-charge shall be final and binding on all concerned.

(13) Application for renewal of the existing Primary Wood-Based Industrial Units shall invariably be accompanied by a Detailed Report (DR) consisting of the following: -

(a) Usage of input raw materials and output produces and sustainable availability of raw materials from Trees outside Forest (ToF).

(b) Consumption of power supported by the power bills of dedicated meter.

(c) Efficiency in terms of machinery installed, output and power consumption.

(d) Compliance of Environment Protection Act 1986.

(e) Carbon footprint.

(f) Sales and marketing throughout and turnover.

(g) Detailed Project Report (DPR) compliance (Applicable only for the new industries set up under these Rules).

(h) Manpower status (compliance of Wage Act, ESI, PSIC, PF and other labour laws).

(i) Proposal for raising captive plantations.

(14) Application for renewal of License granted under these rules shall be made by the Licensee of Wood-Based Industry seeking renewal in online mode through the website/portal, in FORM-III not later than 3 (Three) months before the expiry of the License period.

(15) On successful submission of the online application in FORM-III, an acknowledgement shall be issued online to the applicant. The application shall be scrutinized by the Divisional Forest Officer concerned for its completeness and he shall examine the factual details, feasibility of the proposal including availability of raw materials, quarterly returns submitted by the concerned Wood-Based Industry, including any history of offence etc. Any deficiency in the application shall be communicated online to the applicant for correction. The applicant may rectify the deficiencies and re-submit the Application online. The Divisional Forest Officer concerned, once satisfied with the completeness of the said application shall forward his findings/comments/recommendation, to the next level i.e. Officer in-charge of Circle concerned within 30 (Thirty) working days from the date of receipt of the complete application. The application shall be processed online at Circle –level and Zonal-level within 7 (Seven) working days' time at each level, otherwise once the time limit is crossed the application shall automatically move to the next level and

finally to the Nodal Officer. The Nodal Officer shall in turn place the same for considering it by the State Level Committee in the next meeting. Authorities at each level shall apply due diligence while forwarding and recommending the said application.

(16) After considering the application from in all aspects, the State Level Committee may dispose the application for renewal, within 30 (thirty) days, as it deems fit, after making appropriate inquiries, if required.

(17) A late fee at the rate of Rs. 500/- per day shall be levied from License holder for failing to submit the renewal application for License from the 1st day of last three months of the expiry of license period. Thereafter, late fee at the rate of Rs. 1000/- per day from 1st day after the expiry of the License period till the application for renewal is received from the license-holder.

(18) Each application for renewal shall be accompanied by a non-refundable application fee as prescribed below in online mode through the website or portal:

(a) Saw Mill and any primary wood-based Industry other than units mentioned below:
-Rs. 5000/- (Rupees Five Thousand Only)

(b) Veneer, plywood Mill, hard board, match manufacturing unit:
-Rs. 10,000/- (Rupees Ten Thousand Only)

(19) All applications submitted with a delay as mentioned in rule 7 (14) above, for renewal of wood-based industries, shall be invariably accompanied by a copy of late fee online payment receipt, acknowledgement slip/ transaction slip, in tune with the rule 7 (17) above, along with the application form.

(20) Renewal of License shall be made as per the recommendation of the State Level Committee subject to payment of renewal fee as specified below in online mode through the website or portal:

(a) Saw Mill and any Wood-Based Industry other than listed below:
-Rs. 50,000/- (Rupees Fifty Thousand Only)

(b) Veneer mill, hard board, manufacturing unit:
-Rs. 1,00,000/- (Rupees One Lakh only)

(c) Ply board Mill, Match manufacturing unit:
-Rs. 2,00,000/- (Rupees Two Lakh Only)

(21) The State Level Committee after due examination or conducting such enquiry, as deems fit, and within a period of 30 (thirty) working days from the date of receipt of such online application for renewal, shall either renew or refuse to renew the License:

Provided that no License shall be renewed unless it is satisfied about the location, availability of raw materials, financial capacity and past records in business of such person. Where the State Level Committee refuses to renew a License, it shall record the reasons therefore and such reasons shall be communicated to the person in writing.

(22) On being approved online by the State level Committee for renewal of a License, the same shall be communicated online by the Nodal Officer to the Divisional Forest Officer concerned, with copy to all concerned, who shall be authorized to renew a License accordingly to the applicant. The Divisional Forest Officer concerned, after receiving all the applicable fees, may then renew the License, within 7 (Seven) days of receipt of said communication from SLC, in the FORM-IV for 5 (five) years from the date of renewal of License. In case any discrepancy is noticed in the application or supporting, documents at any point of time during application process or even after grant/renewal of license, it may be cancelled by the Divisional Forest Officer concerned with the prior approval of State Level Committee.

(23) In the event, the State Level Committee finds that the proposal is incomplete/ factually incorrect and refuses to renew a License, the applicant may apply afresh after providing the additional information/rectification of data etc. on payment of the applicable late fee under these rules till the date of submission of the application for consideration by the state level Committee.

(24) No application for grant/renewal of License shall be rejected without giving an opportunity of being heard to the holder of such a License for presenting his case before the State Level Committee unless the State Level committee is satisfied that,

(a) any statement made by the person while making application for grant, renewal of the License was incorrect or materially false or incomplete;

(b) such person has contravened any of the terms or conditions of the License or any provision of the act or this rules or committed an offence under the Act.

(25) A license issued to establish a Wood-Based Industry or to renew under rule 7,-

(a) shall remain valid for 5 (Five) years, from the date of such issue or renewal of License. However, notwithstanding anything contained under these rules, the Licensing Authority may, where there are reasons to believe that the licensee is operating the Wood-Based Industry in contravention of the provisions of these rules or conditions of License or any rules framed by the Government of Assam or is in activities prejudicial to the interest of forest conservation or public interest, at any time after giving one month notice, revoke the License granted to such Wood-Based Industry:

(b) is not transferable without the prior approval from the State Level Committee.

(26) The Licensing Authority concerned may, for reasons to be recorded in writing, suspend any License granted or renewed under these rules till such time as the licensee rectifies the shortfalls pointed out by him;

Provided that no such suspension shall be made except after giving the holder of the License an opportunity of being heard.

(27) All Wood-Based Industries shall follow all environmental and other regulations prescribed by the State Pollution Control Board, Central Pollution Control Board and Ministry of Environment, Forest and Climate Change as applicable to these industries under the Environment (Protection) Act, 1986 and other Central and State Acts and shall abide by the specifications and standards of operating conditions and establishment layout as prescribed by the State Level Committee from time to time. Further, the unit shall adhere to all norms such as employees Provident Fund, ESI, accidental insurance cum death benefit etc.

Provisions for establishment, operation, renewal of Secondary Wood-Based Industries

8. (A) Provisions for establishment, operation, renewal of Secondary Wood Based Industries (Other than Agar Wood Based Industrial Units) :

(i) All Secondary Wood-Based Industries that are covered under this rule such as Furniture units, units using Block Board, Medium Density Fibre Board, Sawn timber, cane, bamboo, reeds, plywood, veneers, and other Non-Timber Forest Produce etc, shall obtain registration under these rules. However, any Secondary Wood-Based Industry that is a part of a Composite Wood-Based Industrial Unit shall not require a separate registration under these rules. The State Level Committee shall issue a single License to the

Composite Wood-Based Industrial Unit mentioning all the Wood-Based Industrial Units. However, the requisite License, registration, renewal fees shall be required to be paid as applicable to each of the individual units under these rules.

(ii) Any person, seeking registration under these rules, shall make an online application as per FORM-IX to the Divisional Forest Officer concerned in online mode through the website or portal.

(iii) Each application shall be accompanied by a non-refundable application fee of Rs 2000/- (Rupees Two Thousand Only) payable in online mode through the website or portal.

(iv) Registration Committee as defined under these rules, shall be constituted for each territorial Circle, with the following Official Members: -

| | | |
|---|---|---|
| (a) | Circle Chief Conservator or Conservator concerned | -Chairman |
| (b) | Representative of Deputy Commissioner or Sub Divisional Officer (Civil) | -Member |
| (c) | General Manager Industry or his representative | -Member |
| (d) | Divisional Forest Officer concerned | -Member Secretary |

(v) The Registration Committee shall submit a quarterly report, on disposal of applications for registration, to the State Level Committee.

(vi) On successful submission of the online application in FORM-IX, the portal shall automatically generate an acknowledgement receipt with seal and date and the same shall be issued online to the applicant. The application shall be scrutinized by the Divisional Forest Officer concerned for its completeness and he shall examine the factual details, feasibility of the proposal including availability of raw materials, carry out site inspection etc. for establishment or expansion of the Secondary Wood-Based Industry. Any

deficiency in the application shall be communicated online to the applicant for correction. The applicant may rectify the deficiencies and re-submit the application online. The Divisional Forest Officer concerned, once satisfied with the completeness of the said application shall forward his findings, comments, recommendation along with certified maps, GIS, location Maps and proper Geo-Coordinates, to the Registration Committee concerned within 30 (Thirty) working days from the date of receipt of the complete application.

(vii) After considering the application form in all aspects, the Registration Committee may dispose the application, as it deems fit, after making appropriate inquiries, if required, in 25 (twenty-five) working days.

(viii) Final approval for issue of Registration Certificate shall be subject to deposition of one-time payment of non-refundable registration fee to the tune of Rs. 50,000/- (Rupees Fifty Thousand Only) to the Department or as determined by the Registration Committee as and when required from time to time, in online mode through the website or portal.

(ix) On being approved by the Registration Committee for issue of Registration Certificate, the same shall be communicated online to the Divisional Forest Officer concerned, with copy to all concerned.

(x) The Divisional Forest Officer concerned, after receiving all the applicable fees, may then issue Registration Certificate, within 07 days of the receipt of said communication from the Registration Committee, in the FORM-X. In case any discrepancy is noticed in the application or supporting, documents at any point of time during application process or even after grant or renewal of Registration, it may be cancelled by the Divisional Forest Officer concerned with the prior approval of the Registration Committee.

(xi) The Registration granted under this Rule shall remain valid for 5 (Five) years, from the date of such issue or renewal of Registration. However, notwithstanding anything contained under these rules, the Registering Authority may, where there are reasons to believe that

the Registration Certificate Holder is operating the Secondary Wood-Based Industry in contravention of the provisions of these rules or conditions of Registration or any rules framed by the Government of Assam or is in activities prejudicial to the interest of forest conservation or public interest, at any time after giving one month notice, suspend the Registration granted to such Wood-Based Industry. The matter shall be placed online by the Divisional Forest Officer before the Registration Committee concerned within 30 (thirty) working days of issuance of suspension order. The Registration Committee may take further action i.e. either revoke the Registration in question or lift the suspension, as the case may be within 30 (thirty) working days. No decision to revoke the registration shall be taken without giving the Registration Certificate holder a reasonable opportunity of being heard.

(xii) Registration issued is not transferable without the prior approval from the Registration Committee.

(xiii) Application for renewal of Registration Certificate granted under these rules shall be made by the Registration Certificate Holder of Secondary Wood-Based Industry seeking renewal, to the Divisional Forest Officer concerned, in FORM-XI, not later than 3 (Three) months before the expiry of the Registration Certificate.

(xiv) On successful submission of the online application in FORM-XI an acknowledgement receipt with seal and date and the same shall be issued online to the applicant. The application shall be scrutinized by the Divisional Forest Officer concerned for its completeness and he shall examine the factual details, feasibility of the proposal including availability of raw materials, quarterly returns submitted by the Secondary Wood-Based Industrial Unit concerned, any history of offence etc. Any deficiency in the application shall be communicated online to the applicant for correction. The applicant may rectify the deficiencies and re-submit the Application online. The Divisional Forest Officer concerned, once satisfied with the completeness of the said application shall forward his findings, comments, recommendation, to the Registration Committee concerned within 30

(Thirty) working days from the date of receipt of the complete application.

(xv) A late fee at the rate of Rs. 200/- (Rupees Two Hundred Only) per day shall be levied from Registration holder for failing to submit the renewal application for License from the 1st day of last three months of the expiry of Registration period. Thereafter, late fee at the rate of Rs. 500/- (Rupees Five Hundred only) per day from 1st day after the expiry of the Registration till the application for renewal is received from the Registration holder. The entire late fee shall be deposited in online mode through the website or portal.

(xvi) All applications submitted with a delay for renewal of Secondary Wood-Based Industrial units shall invariably accompany with a copy of late fee payment receipt, acknowledgement slip, transaction slip along with the application form as prescribed under rule 8 (A) (xiii).

(xvii) Each application shall be accompanied by a non-refundable application fee to the tune of Rs. 1,000/- (Rupees One Thousand Only) paid in online mode through the website or portal.

(xviii) Renewal of Registration shall be made as per the recommendation of the Registration Committee subject to payment of renewal fee to the tune of Rs. 10,000/- (Rupees Ten Thousand Only) paid in online mode through the website or portal.

(xix) The Registration Committee after due examination or conducting such enquiry, as deems fit, and within a period of 30 (thirty) working days from the date of receipt of such application, shall either renew or refuse to renew the Registration:

Provided that no Registration shall be renewed unless it is satisfied about the location, availability of raw materials, financial capacity and past records in business of such person. Where the Registration Committee refuses to renew Registration, it shall record the reasons therefore and such reasons shall be communicated to the person in writing.

(xx) Registering Authority shall grant Renewal of Registration within 7 (seven) days of communication of approval of the Registration Committee Renewal of Registration shall be made in the FORM-XII.

(xxi) In the event, the Registration Committee finds that the proposal is incomplete or factually incorrect and refuses to renew Registration, the applicant may apply afresh after providing the additional information or rectification of data etc. on payment of the applicable late fee with effect from 1st day after the expiry of Registration till the date of submission of the application for consideration by the Registration Committee.

(xxii) No application for grant or renewal of Registration shall be rejected without giving an opportunity of being heard to the holder of such a Registration for presenting his case before the Registration Committee unless the Registration committee is satisfied that,-

(a) any statement made by the person while making application for grant or renewal of the registration was incorrect or materially false or incomplete;

(b) such person has contravened any of the terms or conditions of the Registration or any provision of the act or this rules or committed an offence under the Act.

(xxiii) Terms and conditions of Registration issued under this rule:

(a) Every Registration Certificate Holder shall submit to the authorized officer concerned a quarterly report on opening stock balance, receipt of raw materials, conversion, dispatch of converted product and closing stock balance of forest produce, within 7 (seven) days of the expiry of the period of the said three months in FORM-XVI appended to these rules which shall be compiled from the Register maintained in the FORM-XIII, XIV and XV appended to these rules.

(b) Shall not be usually transferable as a matter of right except to legal heirs as decided by the Registration Committee.

(c) Breach of any of the above conditions or infringement of any law of the State for the time being in force will render this Registration to be cancelled.

(d) Repeated commission of forest offence for 3 (three) times shall render Registration liable for cancellation.

(e) In the event of any dispute arising between the holder of this Registration and the Forest Department as regards interpretation of rules made in the License or in its execution, the decision of the Zonal in-charge shall be final and binding on all concerned.

(B) Procedure for establishment and operation of Agar wood processing units and Agar oil extracting units:

Considering the extent, nature, tradition and location of Agar Wood processing Units and Agar Oil extracting Units, the following provisions are made in the interest of promoting the trade: -

(i) Establishment of Agar wood processing and Agar oil extracting units:

(a) No Agar wood processing and Agar oil extracting unit shall be established or run without a valid Registration granted under these rules.

(b) All the existing unit holders shall apply for registration under these rules and get registered with the Divisional Forest Officer concerned within 03 (three) months of notification of these rules.

(c) Any Secondary Wood-Based Industry that is a part of a Composite Wood Based Industrial Unit shall not require a separate registration under these rules. The State Level Committee (SLC) shall issue a single License to the Composite Wood Based Industrial Unit mentioning all the Wood-Based Industrial Units. However, the requisite license, registration, renewal fees be required to be paid as applicable to each of the individual units under these rules.

(ii) Registration Committee is a regional committee, as defined under these rules, shall be constituted for each territorial Circle, with the following Official members:

| | | |
|---|---|---|
| (a) | Circle Chief Conservator, Conservator concerned | -Chairman |
| (b) | Representative of Deputy Commissioner, SDO (Civil) | -Member |
| (c) | General Manager Industry or his representative | -Member |
| (d) | Divisional Forest Officer concerned | -Member Secretary |

(iii) The Registration Committee shall submit a quarterly report to the State Level Committee (SLC).

(iv) Procedure for obtaining Registration Certificate/renewal of Certificate by Agar wood processing and Agar oil extracting unit:

(a) Any person desirous to establish or operate an Agar Wood-Based Industrial unit shall make an application for Registration Certificate FORM-XVII appended to these rules online mode through the website or portal.

(b) Each application shall be accompanied by a non-refundable application fee of Rs.500.00 (Rupees Five hundred only)deposited in online mode through the website or portal.

(c) Each application for Registration or Renewal shall be accompanied by,

(I) Land document, Miyadi Patta, Lease deed of land or premise, Power of Attorney;

(II) Up to date land revenue payment receipt.

(d) The application shall be made category-wise such as Micro, Small, Medium and Large units specifying number of Boilers, Vessels and its aggregate capacity or only Agar Wood Processing Unit or Composite Agar Wood-Based Industrial Unit.

(e) On successful submission of the online application in FORM-XVII, the portal shall automatically generate an acknowledgement receipt with seal and date and the same shall be issued online to the applicant. The application shall be scrutinized by the Divisional Forest Officer concerned for its completeness and he shall examine the factual details, feasibility of the proposal including availability of raw materials, carry out site inspection etc. for establishment or expansion of the Secondary Wood-Based Industry. Any deficiency in the application shall be communicated online to the applicant for correction. The applicant may rectify the deficiencies and re-submit the application online. The Divisional Forest Officer concerned, once satisfied with the completeness of the said application shall forward his findings, comment, recommendation along with certified maps, GIS, location Maps and proper Geo-Coordinates, to the Registration Committee concerned within 30 (Thirty) working days from the date of receipt of the complete application.

(f) The Registration Committee shall, after having got made such enquiry as it thinks fit and within 30 (Thirty) days from the date of receipt of such application, may recommend either grant or renew the Registration certificate in the prescribed format or reject the application. The Divisional Forest Officer shall issue Registration Certificate within 7 (Seven) days from the date of final decision of the Registration Committee. In case the Registration Committee refuses to grant or renew a Registration Certificate, it shall record the reasons thereof and shall be communicated to the applicant in writing.

(g) Registering Authority shall grant the Registration Certificate as per FORM-XVIII which shall be valid for a period of 5 (Five) years from the date of grant of Registration subject to payment of Registration fee to the Divisional Forest Officer concerned.

(h) The Registration fees are prescribed in the following manner: -

(i) Micro Unit: Rs. 2000/- (Rupees Two Thousand Only);

(ii) Small Unit: Rs. 25,000/- (Rupees Twenty-Five Thousand only);

(iii) Medium Unit: Rs. 2,00,000/- (Rupees Two lakh only);

(iv) Large Unit: Rs. 5,00,000/- (Rupees Five lakh only);

(v) Agar Wood processing unit: Rs. 2,00,000/- (Rupees Two lakh (only);

(vi) Composite Agar Wood-Based Industrial Unit: Rs. 3,00,000/- (Rupees Three lakh only).

(i) At the time of granting the Registration, the concerned shall be instructed to deposit registration fee in online mode through the website or portal.

(j) The Registration Committee after due examination or conducting such enquiry, as deems fit, and within a period of 30 (thirty) working days from the date of receipt of such application, shall either renew or refuse to renew the Registration:

Provided that no Registration shall be renewed unless it is satisfied about the location, availability of raw materials, financial capacity and past records in business of such person. Where the Registration Committee refuses to renew Registration, it shall record the reasons therefore and such reasons shall be communicated to the person

in writing. Renewal of registration certificate shall be made in the FORM-XX.

(k) In the event, the Registration Committee finds that the proposal is incomplete or factually incorrect and refuses to renew Registration, the applicant may apply afresh after providing the additional information or rectification of data etc. on payment of the applicable late fee with effect from 1st day after the expiry of Registration till the date of submission of the application for consideration by the Registration Committee.

(l) No application for grant or renewal of Registration shall be rejected without giving an opportunity of being heard to the holder of such a Registration for presenting his case before the Registration Committee unless the Registration Committee is satisfied that,

(I) any statement made by the person while making application for grant, renewal of the registration was incorrect or materially false or incomplete;

(II) such person has contravened any of the terms or conditions of the Registration or any provision of the act or this rules or committed an offence under the Act.

(m) Application for renewal of Registration in FORM-XIX granted shall be made in online mode through the website or portal in prescribed form, 3 (Three) months before the expiry of the Registration.

(n) On successful submission of the online application in FORM-XIX the portal shall automatically generate an acknowledgement receipt with seal and date and the same shall be issued online to the applicant. The application shall be scrutinized by the Divisional Forest Officer concerned for its completeness and he shall examine the factual

details, feasibility of the proposal including availability of raw materials, quarterly returns submitted by the Agar Wood-Based Industrial Unit concerned, any history of offence etc. Any deficiency in the application shall be communicated online to the applicant for correction. The applicant may rectify the deficiencies and re-submit the application online. The Divisional Forest Officer concerned, once satisfied with the completeness of the said application shall forward his findings, comments, recommendation to the Registration Committee concerned within 30 (Thirty) working days from the date of receipt of the complete application.

(o) The Registration Committee after due examination or conducting such enquiry, as deem fit, and within a period of 30 (thirty) working days from the date of receipt of such application, shall either renew or refuse to renew the Registration:

Provided that no Registration shall be renewed unless it is satisfied about the location, availability of raw materials, financial capacity and past records in business of such person. Where the Registration Committee refuses to renew Registration, it shall record the reasons therefore and such reasons shall be communicated to the person in writing.

(p) In the event, the Registration Committee finds that the proposal is incomplete or factually incorrect and refuses to renew Registration, the applicant may apply afresh after providing the additional information or rectification of data etc. on payment of the applicable late fee with effect from 1st day after the expiry of Registration till the date of submission of the application for consideration by the Registration Committee.

(q) Renewal of Registration shall be permitted by the Registration Committee, subject to payment of renewal fee as prescribed below:

(i) Micro Unit: 1,000/- (Rupees One Thousand Only);

(ii) Small Unit: Rs. 15,000/-(Rupees Fifteen Thousand only);

(iii) Medium Unit: Rs. 1,00,000/- (Rupees One lakh only);

(iv) Large Unit: Rs. 1,50,000/-(Rupees One Lakh Fifty Thousand only);

(v) Agar Wood processing unit: Rs. 2,00,000/- (Rupees Two Lakh only);

(vi) Composite Agar Wood-Based Industrial Unit: Rs. 1,50,000/- (Rupees One Lakh Fifty Thousand only).

(r) Registering Authority shall grant Renewal of Registration in the FORM-XX within 7 (Seven) days of communication of approval of the Registration Committee.

(s) At the time of granting the renewal of the Registration, the concerned shall be instructed to deposit in online mode through the website or portal.

(t) Government of Assam has the power to revise all the fees prescribed under these rules from time to time whenever felt necessary.

(u) For the purpose of verification under sub-rule-(xi), the Divisional Forest Officer or any officer authorized by him may enter into or upon the land given by the applicant for installation Agar wood processing and Agar oil extracting unit for ascertaining the merit of application.

(v) No application for renewal of a Registration shall be rejected unless the holder of such registration has been given an opportunity of presenting his case and unless the Registration Committee is satisfied that,-

(I) the application for such renewal has been made after the expiry of the period specified thereof; or

(II) any statement made by the person making application for renewal of the registration was incorrect or materially false; or

(III) such person has contravened any of the terms or conditions of the registration or any provision of the Act of these rules; or

(IV) such person does not fulfil the terms and conditions for such registration; or

(V) any other condition, which the Registration Committee may impose.

(v) The Registration granted under this rule shall remain valid for 5 (Five) years, from the date of such issue or renewal of Registration. However, notwithstanding anything contained under these rules, the Registering Authority may, where there are reasons to believe that the Registration Certificate Holder is operating the Secondary Wood Based Industry in contravention of the provisions of these rules or conditions of Registration or any rules framed by the Government of Assam or is in activities prejudicial to the interest of forest conservation or public interest, at any time after giving one month notice, revoke the Registration granted to such Wood-Based Industry.

(vi) Registration issued is not transferable without the prior approval from the Registration Committee.

(vii) Terms and Conditions of Registration:

(a) Every Registration Certificate Holder shall submit to the authorized officer concerned a quarterly report on opening stock balance, receipt of raw materials, conversion, dispatch of converted product and closing stock balance of forest produce, within seven days of the expiry of the period of the said three months in FORM-XXIV which shall be compiled from the Register maintained in the FORM-XXI, XXII, XXIII – A and XXIII-B appended to these rules.

(b) Breach of any of the above conditions or infringement of any law of the State for the time being in force shall render this Registration to be cancelled.

(c) In the event of any dispute arising between the holder of this Registration and the Forest Department as regards interpretation of rules made in the License or in its execution, the decision of the Zonal in-charge shall be final and binding on all concerned.

(d) Shall not be usually transferable as a matter of right except to legal heirs as decided by the Registration Committee.

(e) Breach of any of the above conditions or infringement of any law of the State for the time being in force shall render this Registration to be cancelled.

(f) Repeated commission f forest offence foe 3 (three) times shall render Registration liable for cancellation.

(g) In the event of any dispute arising between the holder of this Registration and the Forest Department as regards interpretation of rules made in the License or in its execution, the decision of the Zonal in-charge shall be final and binding on all concerned.

(h) Industry is recommended to use renewable sources of energy such as Solar, hydro, biogas Briquettes, Rice husk etc. Use of firewood is to be avoided.

(viii) Suspension or Revocation of Registration:

(a) The Divisional Forest Officer may, for reasons to be recorded in writing, suspend any Registration granted under these rules. The Divisional Forest Officer or officer authorized by him at the time of suspending the registration shall simultaneously seize the stock of Agar wood, its derivatives or extracts and record the same as per the procedure laid down in the Act.

(b) Once the Registration Committee cancels the registration, the Divisional Forest Officer

shall conduct confiscatory proceedings as per provisions contained in the Act in relation to the stock of Agar wood, its derivatives or extracts seized by him or officer authorized by him during suspension of registration.

(ix) Maintenance of Registers:

(a) The Registered Agar wood processing Units and Agar oil extracting Units under these rules shall maintain the stock registers of Agarwood derivatives, including raw material grown and harvested from private land or plantation, agro-forestry plantations and plantations raised on non-forest Government lands etc. in prescribed forms revised from time to time. If any such Agarwood material is imported under existing rules and procedures, a separate stock register for imported material shall be maintained in the prescribed FORM-XXIII-B.

(b) Separate stock registers to be maintained to record receipt, production of processed agarwood, agar Oil (grade-wise) and Agar dust and dispatch for Domestic and imported Agar Wood raw materials.

(x) Verification of records:

(a) Not below the rank of Range Officer may inspect and verify at any time without prior notice the following within the premises of the registered Agar wood Oil processing units:

(I) Records required to be maintained under sub-rule-vii.

(II) Stock of agarwood in any form viz chips, dust etc.

(b) During such inspection and verification, the Registration Certificate holder or his authorized agent, employee and workers are lawfully bound to extend all possible assistance and produce all documents and records as may be required during such verification.

(xi) Import, Export, Re-export of the processed chips and Agar oil:

(a) Any Trader or Firm desirous to import the Agar wood chips and dust shall comply with all the terms and conditions imposed from time to time by the CITES authority and shall invariably obtain CITES clearance.

(b) The traders shall transport imported consignment to the Registered Agar wood processing and Agar oil extracting units on the strength of Import Documents including Documents related to Customs and CITES. For transportation of such consignment to the industrial units, transit pass from the Forest Department is required.

(c) On arrival of imported consignment, the Registration Certificate holder shall inform Divisional Forest Officer in writing within 24 hours.

(d) A certificate of the current position of stocks so procured and available with the applicant given after physical verification of the stocks, by the authority nominated for the purpose by the Principal Chief Conservator of Forests and Head of Forest Force, Assam shall also accompany the application for issue of Legal Procurement Certificate.

(e) Coloured photograph of products duly certified by the concerned officer designated by the Principal Chief Conservator of Forests and Head of Forest Force, Assam shall also accompany the application for issue of Legal Procurement Certificate.

(f) The traders who want to export Agar wood products of domestic origin shall produce supporting documents covering entire marketing chain starting from registration of plantation grown on non-forest lands with Forest department, certificate of origin issued by an officer of Forest department authorized by the Government of Assam, the certificate of origin should mention that the plantation from which Agar wood was obtained is registered with the forest department,

harvesting, transportation and arrival of raw material stock at his or her Agar wood processing unit or Agar oil extracting units to enable the Divisional Forest Officer concerned to issue Legal Procurement Certificate as per CITES provisions. The burden of proving origin and chain of custody lies entirely upon the trader desiring to export the Agar-wood derivatives.

(g) On verification of stocks and relevant records as per sub-rule-xi and upon verification of documents required for traceability and chain of custody, the Divisional Forest Officer shall issue Legal Procurement Certificate in FORM-XXV to obtain CITES Clearance for re-export of Agar wood and its derivatives or extracts and agar oil. The CITES clearance shall be obtained by the traders after getting the Legal Procurement Certificate (LPC) from Divisional Forest Officer.

(h) All the export transactions shall be in conformity with the terms and conditions laid down from time to time under CITES.

(i) Nodal Officer shall undertake an empirical study through a reputed institute:

(I) To elicit production dynamics for both domestic and imported Agar wood material in terms of their output in the form of Agar oil and Agar dust and other saleable by-products.

(II) To study domestic and international markets and arrive at broad commercial grades of Agar oil and to prescribe grade-wise royalty to be levied by the Government of Assam.

(III) To devise a user-friendly scientific mechanism for ascertaining the grade of Agar oil for the purpose of field-level inspection by the front-line staff of forest department.

(IV) To devise a user-friendly scientific mechanism for ascertaining the source of processed agar wood chips whether domestic or imported for the purpose of field-level inspection by the front-line staff of forest department. This is to comply with the requirements under CITES.

(V) Social Audit.

(VI) Socio-Economic survey.

Relocation of Wood-Based Industry

9. (1) No Wood-Based Industry shall be allowed to be relocated from its original location to a new location without prior permission from the State Level Committee. Wood-Based Industries shall be permitted to relocate from the original location to the suitable industrial estate in new location subject to the following conditions: -

(a) A License holder or Registration Certificate holder desirous of relocating his Wood-Based Industry shall apply in FORM-I or FORM-IX or FORM-XVII to the Nodal Officer, in online mode through the website or portal, through the Divisional Forest Officer concerned and through proper channel, specifying the reason for re-locating his Wood-Based Industry from the present location to the new location along with the details of the new location with GPS Co-ordinates of its boundary and also name of the Industrial estate.

(b) Each application shall be accompanied by a non-refundable fee of Rs 50,000/- (Rupees Fifty Thousand Only) paid in online mode through the website or portal.

(2) On receipt of the online application for relocation of any Wood-Based Industry, the Divisional Forest Officer concerned shall scrutinize the FORM-I and the accompanied mandatory documents for its completeness and correctness. In case the new location falls within the jurisdiction of the Divisional Forest Officer concerned, he shall personally verify the feasibility of setting up the industry concerned and shall forward the application along with a detailed Site Inspection report, GIS Map and proper Geo-Coordinates, to the Nodal Officer, through proper channel, with his specific recommendation, within 30 (Thirty) working days. In the event the new location falls in other Division, the Divisional Forest Officer shall similarly forward the application along with his comment to the Nodal Officer, Assam, through proper channel, and furnish the details of the new location to the Divisional Forest Officer concerned for his Inspection and submission of the Site Inspection report within 15 (fifteen) working days after receipt of the application. The Divisional Forest Officer concerned, under whose jurisdiction the new location falls, shall submit a Site Inspection report, through proper channel, within 30 (thirty) working days to the Nodal Officer, through proper channel, along with his comment for processing it and placing it before the State Level Committee or Registration Committee.

(3) The State Level Committee or Registration Committee, as the case may be, after due examination or conducting such enquiry, as deemed fit, and within a period of 60 (sixty) working days from the date of receipt of such application, shall either allow or refuse to allow the relocation of the Wood-Based Industry to the new location. Relocation of Wood-Based Industry shall not be allowed unless it is satisfied that the new location is suitable for establishment of the Wood-Based Industry, raw materials are available, financial capacity and past records in business of such License holder are satisfactory. Where the State Level Committee or Registration Committee refuses to allow relocation of the Wood-Based Industry to the new location, it shall record the reasons therefore and such reasons shall be communicated to the applicant in writing.

Green Fee Fund

10. There shall be established a Green Fee Fund in the nature of Corpus or Revolving Fund wherein all the fees, levies, penalties and receivables shall be deposited. In addition to payment of renewal fee, a non-refundable Green Fee, shall be levied along with the fresh or renewal application by the Wood-Based Industrial Units in online mode through the website or portal.

The rates of the green fee may be revised by the State Government as and when required. The rates of Green Fee are prescribed in the following manner, namely:-

(a) Saw Mills up to 20 HP:
Rs. 20,000.00 (Rupees Twenty Thousand Only)

(b) Saw Mills above 20 up to 40 HP:
Rs. 40,000.00 (Rupees Forty Thousand Only)

(c) Saw Mills above 40 up to 60 HP:
Rs. 60,000.00 (Rupees Sixty Thousand Only)

(d) Saw Mills above 60 HP:
Rs. 80,000.00 (Rupees Eighty Thousand Only)

(e) Veneer/Ply Mills:
Rs. 1,00,000.00 (Rupees One Lakh Only)

(f) All other WBIs excluding Secondary WBIs:
Rs. 50,000.00 (Rupees Fifty Thousand Only)

(g) All secondary Wood-Based Industrial units:
Rs. 20,000.00 (Rupees Twenty Thousand Only).

Other terms and conditions:

(a) In the event, the firm fails to deposit the applicable Green Fee along with the renewal application of the Wood-Based Industry, the license shall not be renewed and the validity of the License shall lapse after the completion of the current financial year. And the Divisional Forest Officer concerned shall take necessary effective step for closure of the Saw Mill and thereafter shall, through proper channel, submit a detailed report along with his view to the Nodal Officer for placing it before the State Level Committee for cancellation of the License for the balance period.

(b) On cancellation of the License/Registration owing to non-payment of the Green Fee by the State Level Committee or Registration Committee, the Wood-Based Industry Owner concerned shall have to apply afresh for the License after payment of all the applicable fees and dues as per the laid down procedures for renewal of License.

(c) The Nodal Officer shall maintain a separate savings account in any Scheduled Commercial Bank for the Green Fee Fund.

(d) The fund shall be operated by the Chairman and Member-Secretary cum Nodal Officer of SLC and the fund shall be used for the implementation of these rules and furtherance of activities as listed under Rule.

(e) The accounts of the fund shall be audited by an internal auditor appointed by the State Level Committee and placed before the State Level Committee and upon the approval of State Level Committee placed before Accountant General (AG) for further audit.

(f) If the funds reach to a quantum that plantation of at least 10 Ha may be taken up in addition to the ongoing activities, Annual Plan of Operation for afforestation may be submitted by the Divisional Forest Officers commensurate to the availability of funds for this purpose.

Transfer of License, Registration on sale, succession etc.

11. (I) Where transfer of License of Primary Wood-Based Industries or Registration of Secondary Wood-Based Industrial units from one Licensee or Registration holder to another for the same purpose for which it was issued becomes necessary, prior permission of the State Level Committee or Registration Committee shall be required. For this purpose, the original License holder or Registration holder shall submit an application to the Licensing Authority or Registering Authority in online mode through the website or portal stating the reason for such transfer through proper channel along with the prescribed License or Registration transfer fee and following documents: -

(a) Each application for transfer of License shall be accompanied by a non- refundable transfer fee of Rs. 1,00,000/- (Rs one lakh only) and for transfer of Registration Rs. 50,000/- (Rupees Fifty Thousand only) payable in online mode through the website or portal.

(b) A no objection certificate from the original License holder or Registration holder in non-judicial stamp paper or a succession certificate from the Competent Authority are to be furnished.

(c) An undertaking from the person to whom the License or Registration is to be transferred stating that he shall abide by all the terms and conditions on which the License or Registration was issued to the original License holder or Registration holder and any other condition which may be stipulated by the State Level Committee or Registration Committee or Forest Department of Assam in future.

(d) In the event of death of the original License Holder, Registration holder, the ownership shall be transferred to the successor, legal heir with prior permission of the

State Level Committee ,Registration Committee. After death of the original License holder or Registration holder, the Successor, Legal heir shall submit an application to the State Level Committee, Registration Committee in online mode through the website or portal along with application fee, Death Certificate of the original License holder, Succession Certificate, Next of Kin Certificate, Affidavit of Legal heir and NOC of other family Members or any other document as required by State Level Committee, Registration Committee.

(II) On receipt of approval of transfer of License or Registration from the State Level Committee, Registration Committee, the Licensing, Registration Authority shall cancel the original License, Registration and will issue a fresh License, Registration to the concerned person, firm on realization of all applicable dues and taxes.

Suspension or cancellation of License

12. Notwithstanding anything contained in the foregoing rules, the Conservator of Forests within whose jurisdiction the unit lies, may, if there is sufficient reason to believe that the Licensee or Registration holder is operating the Wood-Based Industrial unit in contravention of the provisions of these rules or terms and conditions of License or Registration or is indulging in activities prejudicial to the interest of the forest conservation or public interest, put License or Registration under suspension. He shall refer it to the State Level Committee, Registration Committee within 30 (Thirty) working days period, which shall take a decision thereon within 30 (Thirty) working days of the order of suspension and may suspend or cancel the License granted under rule 7 of these rules, provided that no such suspension or cancellation shall be made except after giving the holder of the License or Registration an opportunity of being heard.

Review of Suspension or Cancellation order

13. The aggrieved party may approach the State Level Committee or Registration Committee for review of suspension or cancellation order passed against his or her Wood-Based Industry within 30 (Thirty) days of passing such order. Upon receipt of such petition for review of the impugned suspension, cancellation order, State Level Committee or Registration Committee shall dispose the review petition within 60 (Sixty) working days. No such disposal shall be made except after giving the petitioner an opportunity of being heard.

Appeal provisions:

14. (1) Any person aggrieved by any decision taken by the State Level Committee or Registration Committee may file an appeal before the Integrated Regional Office, Ministry of Environment & Climate Change, Guwahati, Assam, seeking appropriate relief within 60 (Sixty) days' time.

(2) If, for any reason, any person is aggrieved by the order so passed in the appeal, he may prefer an appropriate petition/application/appeal in the Gauhati High Court.

Records to be maintained by Wood-Based Industries:

15. (1) Each Wood-Based Industry shall maintain and regularly update records in Forms prescribed for each category of Wood-Based Industry i.e., FORM-V, VI and VII for Primary Wood-Based Industries, FORM-XIII, XIV, XV for Secondary Wood-Based Industries (Other than Agarwood based Industries) and FORM-XXI, XXII and XXIII – A and B for Agarwood related Secondary Wood-Based Industries, appended to these rules.

(2) Every Licensee or Registration Certificate holder shall submit to the Authorized Officer concerned a quarterly report, within seven days of the expiry of the period of the said three months in FORM-VIII, FORM-XVI and FORM-XXIV for Primary, Secondary (other than Agarwood) and Agarwood related Secondary Wood-Based Industries respectively appended to these rules which shall be compiled from the Register maintained in the Forms detailed above under sub-rule (I) above.

(3) Any kind of forest produce, be it a raw material, processed or manufactured item, entering or leaving a Wood-Based Industry or its premises shall be covered by a transit pass, transit challan duly issued by Forest Department of Assam under the provisions of the Act.

Inspection and verification of Records

16. The Authorized Officer or his representative may enter in to or upon any land, survey and demarcate the same, make a map thereof or authorize any other officer to do so, call for such documents as he deems necessary for ascertaining the merit of the application and inspect and verify at any time without notice, the following within the premises of the Primary and Secondary Wood-Based Industrial units:

(a) Records required to be maintained under these rules;

(b) Stock of raw material;

(c) Stock of sawn timber or manufactured products or processed products; and

(d) Stock of Agar-wood or its derivatives;

(e) Property marks and Property Marks usage register.

During such inspection and verification, the Licensee or Registration Certificate Holder or his authorized agent, employees and workers, shall be lawfully required to extend all possible assistance and produce all documents and records as may be required during such inspection and verification.

Penalties and punishment

17. All Wood-Based Industries will follow all environmental and other regulations prescribed by the State Pollution Control Board, Central Pollution Control Board and Ministry of Environment, Forest and Climate Change as applicable to these industries under the Environment (Protection) Act, 1986 and other Central and State Acts. Any violation of these rules or any offence committed under the Assam Forest Regulation, 1891, within the Wood-Based Industry premises or otherwise, shall be punishable under the relevant provisions of Assam Forest Regulation, 1891 as amended up-to-date or otherwise mentioned in this rules and other rules or as prescribed by the State Level Committee from time to time. Repeated commission of forest offence for 3 (Three) times shall make the License, Registration liable for cancellation.

Repeal and saving

18. (1) The Assam Wood-Based Industries (Establishment and Regulation) Rules, 2000 is hereby repealed.

(2) Notwithstanding such repeal, any action or orders made under the rules so repealed shall be deemed to have been validly taken or orders made under the provisions of these rules.

(3) Nothing contained in these rules shall apply to the ordinary operation of domestic carpentry, wooden toy and handicraft making units that are housed in the residential premises of the Artisans and which do not use or have the facility for sawing, converting and processing Round timber.

**RAVI SHANKAR PRASAD,**
Addittional Chief Secretary to the Government of Assam,
Environment and Forest Department, Dispur.

FORM-I

[See rule 7(v) and 9(1) (a), (2)]

FORM OF APPLICATION FOR ISSUE OF LICENSE TO ESTABLISH/RENEW/RELOCATE/EXPAND/OPERATE THE WOOD BASED INDUSTRIES

Photo

To,

The Principal Chief Conservator of Forests
And Head of Forest Force, Assam,
Aranya Bhawan, Panjabari, Guwahati-37.

(Through the Divisional Forest Officer,..... Division)

Sir,

I/We Shri ..... (in block letters) son of ..... inhabitant(s) of..... (address to be given in details) under ..... Police Station, District ..... By profession ....., do hereby apply for Grant of license to establish/ renew/ expand/ operate the Wood Based Industries as mentioned below using ..... as raw materials. The particulars of the Wood Based Industry are given herein below:-

1. APPLICANT DETAILS:

| | | |
|---|---|---|
| (a) | Name of the Applicant (Block Capitals) (Owner, Partners, Director etc.) | : |
| (b) | Father's Name | : |
| (c) | Aadhaar Card No. (copy attached) | : |
| (d) | Pan Card No. (copy attached) | : |
| (e) | GST No. (if any) | : |
| (f) | Postal Address | : |
| (g) | Permanent Home Address | : |
| (h) | Mobile No. | : |
| (i) | Email ID | : |

2. TYPE AND CATEGORY OF THE PROPOSED UNIT TO BE SET UP: (Tick Mark)

(a) Sawing of round logs / sawn timber (b) Veneering / Peeling

(c) Splint & match box (d) Others (specify)

3. DETAILS OF THE PROPOSED UNIT:

(a) Name of the Wood Based Industry :

(b) Location / Address :

(c) GPS co-ordination of the boundary :

(d) Forest Range / Division :

(e) District :

(f) Name of the Industrial estate :

(g) License No. with date of validity (for renewal) :

(h) Period for which the license are to be renewed :

(i) Registration No. of the unit in Commerce and Industries Department (if already registered) :

(j) Whether the unit is functioning or not

If yes, since when it was functioning : ..... to .....

(k) Name of the new location in case of relocation along with GPS co-ordination. :

(l) Reason for relocating the wood based industry :

4. Nature of ownership (documents to be attached) (Tick mark whichever is applicable) -

(a) Proprietary (b) Partnership (c) Co-op. Society (d) Lease (e) Others

5. Details of machinery to be installed:

| Sl. No. | Type of machines with specification size | With or without trolley | Size or specification | Horse Power | Number | Installed capacity in cu.mt. (annual) | |
|---|---|---|---|---|---|---|---|
| | | | | | | Round logs | Sawn timber |
| 1 | Horizontal band saw | | | | | | |
| 2 | Vertical band saw | | | | | | |
| 3 | Circular saw | | | | | | |
| 4 | Peeling machine | | | | | | |
| 5 | Match stick making machine | | | | | | |
| 6 | Other (specify) | | | | | | |

6. Total Capital Value of the unit :

7. Rated capacity (volume of timber etc.) per year in cu.mt. :

8. Expected source/sources of raw materials :

9. Employment:

(a) Strength of regular employees :
(b) Strength of daily workers :

10. Whether the applicant is involved in any Criminal/forest/wildlife offence cases :

11. Whether the applicant possessing any other Wood Based Industry in the State, if yes, details thereof :

12. Whether the License fee is attached, if so, No. and date of the challan. :

Documents to be enclosed (Tick mark whichever is applicable)-

( a) Registration Certificate of the Firm/Society/Partnership or Company.
(b) Registration Certificate of the unit in Industries Department.
( c) No Objection Certificate from Pollution Control Board.
(d) Document showing ownership / allotment of land.
(e) Copy of Receipt of application fee.
(f) Location map of the unit showing the approach road.

I hereby declare that the information provided above is true and that if found false subsequently, my application for License may be rejected.

I also undertake that I will abide by the terms and conditions of the License and relevant rules, guidelines and instructions issued by the Government, Principal Chief Conservator of Forests and the authorized officer from time to time and that I will not violate the provisions of the Assam Wood Based Industries (Establishment and Regulation) Rules, 2022.

Place: .....
Date: .....

Yours faithfully,

.....
Signature(s) of the applicant(s).

FORM-II

[See rule 7(11)]

FORM OF LICENCE

Registered License No. ..... Dated the .....day of .....(Month) ..... (Year).

..... ( Name, Names ), inhabitant(s) of ..... (Address to be given in details) in the Police Station ..... District ..... by profession ..... is/ are hereby permitted to set up /run the Wood Based Industry as indicated below under the terms and conditions as laid down in these rules as well as other terms and conditions specified hereunder, using..... as the raw materials, upto 31st March .....

1. Name of the Wood Based Industry :

2. Location and name of the Industrial Estate/Minor Industrial Estate :

3. Legal status (whether ownership of Private Limited Company) :

4. Install capacity with description of the machinery. :

5. Capital Value of the wood based Industry. :

6. Employment:
   - (i) No. of regular employees :
   - (ii) No. of daily workers :

7. License fee paid vide Treasury Challan No. and place of deposit. :

OTHER TERMS AND CONDITIONS

1. Only the registered number allowed to the holder of the License must be used and no other number.

2. A property mark as approved by the Divisional Forest Officer concerned of the territory must be registered and only that mark must be used on all timbers received and issued from the Wood Based Industry.

3. Timbers bearing no property mark/import invoice and or Government hammer mark must not be received in the Wood Based Industry.

4. All timbers received in the Wood Based Industry must be covered by certificate of origin or trade permit or transit pass.

5. Any timber seized in the industry's premises by any Forest Officer must be taken charge of by the owner of the industry under proper Zimmanama and be produced when required.

6. Breach of any of the above conditions or infringement of any law of the State for the time being in force will render this License to be cancelled.

7. In the event of any dispute arising between the holder of the License and the Forest Department as regards interpretation of rules made in the License or in its execution, the decision of the Chief Conservator of Forests shall be final and binding on all concerned.

8. The Wood Based Industrial unit other than veneer mill, plywood mill, hardboard/particle board factory must not run from dusk to down.

Date: .....

Signature of the Issuing Authority

(Seal)

FORM-III

[See rules 7(14), (15)]

FORM OF APPLICATION FOR RENEWAL OF LICENCE

To,

The Principal Chief Conservator of Forests
And Head of Forest Force, Assam,
Aranya Bhawan, Panjabari, Guwahati-37.

(Through the Divisional Forest Officer,..... Division)

Sir,

I/We Shri ..... (in block letters) inhabitant(s) of ..... ( address in details ) under .....Police Station, District.....by profession ....., do hereby apply for renewal of my/our License No. .....Dated ....., the validity of which is expiring on ..... .. An amount of Rs. ..... (Rupees .....) only being the renewal fee has been deposited in the Treasury,..... vide Treasury Challan No. ..... Dated ..... , copy of which is enclosed herewith.

Yours faithfully,

Place: .....

Date: .....

Signature of the Applicant(s)

FORM-IV

[ See rule 7(22) ]

FORM OF RENEWAL OF LICENCE

No. ..... Dated .....

The license No ..... Dated ....., is renewed upto 31st March, .....

Place: .....

Date: .....

Signature of the Issuing Authority
(Seal)

FORM-V

[See rule 7 (12) (f)]

DAILY RECEIPT REGISTER

| Date | Mill Sl. No. | Detail of raw materials (Log No. etc) | Species | Measurement Length/ Girth | Volume | Received from which Divn,/ Depot, etc. | Transit Challan/ Transit Pass No. & Date | Log converted on (Ref. Form VII) | Remarks |
|---|---|---|---|---|---|---|---|---|---|
| 1 | 2 | 3 | 4 | 5 | 6 | 7 | 8 | 9 | 10 |

Place: .....

Date: .....

Signature of the Issuing Authority
(Seal)

FORM-VI

[ See rule 7 (12) (f)]

DAILY CONVERSION REGISTER

| Date | Mill Sl. No. Form V | Species | Log etc. volume/ weight | Outturn size, No. of species, volume | Outturn volume/ weight | Percentage of weight | Dispatch documents No. and Date | Remarks |
|---|---|---|---|---|---|---|---|---|
| 1 | 2 | 3 | 4 | 5 | 6 | 7 | 8 | 10 |

Note: Column 5 –For Timber/Veneer/Plywood/ Hardboard
Column 6 – For Katha/Agar.

Place: .....

Date: .....

Signature of the Issuing Authority
(Seal)

FORM-VII

[ See rule 7 (12) (f)]

DAILY STOCK REGISTER

| Date | Type of Forest Produce | Opening Stock | Received during the day | Converted during the day | Dispatched during the day | Closing balance |
|---|---|---|---|---|---|---|
| 1 | 2 | 3 | 4 | 5 | 6 | 7 |
| | Log | | | | | |
| | Swan timber | | | | | |
| | Veneer | | | | | |
| | Plywood | | | | | |
| | Other forest produce (Specify) | | | | | |

Place: .....

Date: .....

Signature of the Issuing Authority
(Seal)

FORM-VIII

[See rule 15(2) ]

DECLARATION OF QUARTERLY RETURN OF FOREST PRODUCE FOR THE QUARTER ENDING ON ……..

(Unit: As applicable for the particular item)

| Type of Forest Produce | Opening Stock | Received during the period | Dispatched during the period | Closing balance at the end of the period |
|---|---|---|---|---|
| 1 | 2 | 3 | 4 | 5 |
| 1. Log | | | | |
| 2. Sawn timber | | | | |
| 3. Veneer | | | | |
| 4. Plywood | | | | |
| 5. Other Forest Produce (Specify) | | | | |

Seal & Signature

(on behalf of the wood based industry)

FORM- IX

[See rule 8(A)(ii), (vi) and 9(1)(a)]

FORM OF APPLICATION FOR ISSUE OF REGISTRATION CERTIFICATE TO ESTABLISH /RELOCATE/EXPAND/OPERATE THE SECONDARY WOOD BASED INDUSTRIES (Other than Agarwood Based Industrial Units)

Photo

To,

The Divisional Forest Officer,
..... Division)

Sir,

I/We Shri ..... (in block letters) son of..... ..... ..... inhabitant(s) of..... (Address to be given in details) under ..... ..... Police Station, District ..... by profession ..... ....., do hereby apply for Grant of Registration Certificate to establish//expand/operate the wood based industries as mentioned below using ..... as raw materials.

The particulars of the wood – based industry are given herein below:

| | | | |
|---|---|---|---|
| 1. | APPLICANT DETAILS: | | |
| a. | Name of the Applicant (Block Capitals) (Owner, Partners, Director etc.) | : | ..... |
| b. | Father's Name | : | ..... |
| c. | Aadhar Card No. (copy attached) | : | ..... |
| d. | Pan Card No. (copy attached) | : | ..... |
| e. | GST No. (if any) | : | ..... |
| f. | Postal Address | : | ..... |
| g. | Permanent Home Address | : | ..... |
| h. | Mobile No. | : | ..... |
| i. | Email ID | : | ..... |

2. TYPE AND CATEGORY OF THE PROPOSED UNIT TO BE SET UP: (Tick Mark)

(a) Processing/Manufacturing Unit (b) Commercial Shop

(c) Furniture Unit (d) Others (specify)

3. DETAILS OF THE PROPOSED UNIT:

a) Name of the Secondary Wood-based Industry : .....
b) Location / Address : .....
c) GPS co-ordination of the boundary : .....
d) Forest Range / Division : .....
e) District : .....
f) Name of the Industrial estate : .....
g) Registration No. of the unit in Commerce & Industries Department (if already registered) : .....
h) Whether the unit is functioning or not
If yes, since when it was functioning : .....
i) Name of the new location in case of relocation along with GPS co-ordination. : .....to .....
j) Reason for relocating the wood based industry : .....

4. Nature of ownership (documents to be attached) (Tick mark whichever is applicable) -

(a) Proprietary (b) Partnership (c) Co-op. Society (d) Lease (e) Others

5. Details of machinery to be installed:

| Sl. No. | Type of machines with specification size | With or without trolley | Size or specification | Horse Power | Number | Installed capacity in cu.m (annual) | |
|---|---|---|---|---|---|---|---|
| 1<br>2<br>3<br>4<br>5<br><br>6 | Horizontal band saw<br>Vertical band saw<br>Circular saw<br>Peeling machine<br>Match stick making machine<br>Other (specify) | | | | | | |

6. Total Capital Value of the unit : .....

7. Rated capacity (volume of timber etc.) per year in cu.m. : .....

8. Expected source/sources of raw materials : .....

9. Employment:
(a) Strength of regular employees : .....
(b) Strength of daily workers : .....

10. Whether the applicant is involved in any Criminal/forest/wildlife offence cases : .....

| | | | |
|---|---|---|---|
| 11. | Whether the applicant possessing any other Wood based industry in the State, if yes, details thereof | : | …….. |
| 12. | Whether the Registration fee is attached, if so, details of receipt of payment. | : | …… |

Documents to be enclosed (Tick mark whichever is applicable)-

a) Registration Certificate of the Firm/Society/Partnership or Company, as aplicable
b) Registration Certificate of the unit in Industries Department.
c) No Objection Certificate from Pollution Control Board.
d) Document showing ownership / allotment of land.
e) Copy of Receipt of application fee.
f) Location map of the unit showing the approach road.

I hereby declare that the information provided above is true and that if any if the information furnished by me is found false subsequently, my application for license may be rejected.

I also undertake that I will abide by the terms and conditions of the license and relevant rules, guidelines and instructions issued by the Government/Principal Chief Conservator of Forests and HoFF, Assam/the authorized officer, from time to time, and that I will not violate the provisions of the Assam Wood Based Industries (Promotion and Development) Rules, 2022 as amended from time to time.

Place: ……
Date: ……

Yours faithfully,

Signature(s) of the applicant(s).

FORM-X

[[See rule 8(A)(x) ]

CERTIFICATE OF REGISTRATION

Registration No..... Dated on the .....day of .....(Month) ..... (Year.....( Name, Names ), inhabitant(s) of ..... (Address to be given in details) in the Police Station ..... .....District .....
by profession .....is/ are hereby permitted to set up /run the Secondary wood-based industry as indicated below under the terms and conditions as laid down in these rules as well as other terms and conditions specified hereunder, using..... as the raw materials, up to .....

1. Name of the Secondary Wood- Based Industry : .....
2. Legal status (whether ownership of Private Limited Company) : .....
3. Installed capacity with description of the machinery. : .....
4. Capital Value of the Secondary wood based Industry. : .....
5. Employment:
   (i) No. of regular employees : .....
   (ii) No. of daily workers : .....
6. Details of online receipt of the Registration fee paid: .....

OTHER TERMS AND CONDITIONS

a. Every Registration Certificate Holder shall submit to the authorized officer concerned, quarterly report on opening stock balance, receipt of raw materials, conversion, dispatch of converted product and closing stock balance of forest produce, within seven days of the expiry of the period of the said three months in Form No. XVI appended to these rules which shall be compiled from the Register maintained in the Form No. XIII, XIV & XV appended to these rules.
b. Shall not be usually transferable as a matter of right except to legal heirs as decided by the Registration committee.
c. Breach of any of the above conditions or infringement of any law of the State for the time being in force will render this Registration to be cancelled.
d. In the event of any dispute arising between the holder of this Registration and the Forest Department as regards interpretation of rules made in the License or in its execution, the decision of the Zonal in-charge shall be final and binding on all concerned.
e. Industry shall shift to alternate energy sources such as Solar energy, LPG, Briquettes, Rice husk etc. Use of firewood is to be avoided.
f. Registration Certificate shall not be usually transferable as a matter of right except to legal heirs as decided by the Registration committee.

Date: .....

Signature of the Registering Authority
(Seal)

FORM-XI

[See rule 8(A) (xiii) and (xiv)]

FORM OF APPLICATION FOR RENEWAL OF REGISTRATION

To,

The Divisional Forest Officer,
..... Division

Sir,

I/We Shri ..... (in block letters) inhabitant(s) of .....( address in details ) under .....Police Station, District.....by profession ....., do hereby apply for renewal of my/our Registration No. .....Dated ....., the validity of which is expiring on ..... An amount of Rs. ..... (Rupees .....) only being the renewal fee has been deposited online. The details of receipt of payment of fee are No ..... Dated ....., copy of which is enclosed herewith.

Yours faithfully,

Place: .....
Date: .....

Signature of the Applicant(s)

FORM-XII

[See rule 8 (A) (xx)]

CERTIFICATE OF RENEWAL OF REGISTRATION

Ref. No. ..... Dated .....

Registration No ..... Dated ....., is renewed up to ,.....

Place: .....
Date: .....

Signature of the Registering Authority
(Seal)

FORM-XIII

[See rule 8 (A) (xxiii) (a) and 15(1)]

DAILY RECEIPT REGISTER

| Date | Mill/ Unit Sl. No. | Detail of raw materials (Plank No. etc) | Species* | Measurement Length/ Breadth | Volume /Weight | Received from which Divn./ Depot, etc. | Transit Challan/Transit Pass No. & Date | converted on (Ref. Form XV) | Remark |
|---|---|---|---|---|---|---|---|---|---|
| 1 | 2 | 3 | 4 | 5 | 6 | 7 | 8 | 9 | 10 |

* including Species listed in Rule 4.1 of Assam (Control of felling & Removal of trees from non-forest lands) Rules 2002

Place: .....
Date: .....

Seal & Signature
(on behalf of the wood based industry)

FORM-XIV

[See rule 8(A)(xxiii)(a)]

DAILY CONVERSION REGISTER

| Date | Unit Sl. No. Form V | Species * | Log etc. volume/ weight | Outturn size, No. of species, volume | Outturn volume/weigh t | Percentag e of weight | Dispatch documents No. & Date | Remark s |
|---|---|---|---|---|---|---|---|---|
| 1 | 2 | 3 | 4 | 5 | 6 | 7 | 8 | 10 |

* including Species listed in Rule 4.1 of Assam (Control of felling & Removal of trees from non-forest lands) Rules 2002

Note: Column 5 –For Timber/Veneer/Plywood
Column 6 – For Katha

Place: .....

Date: .....

Seal & Signature
(on behalf of the wood based industry)

FORM-XV

[See rule 8(A)(xxiii)(a)]

DAILY STOCK REGISTER

| Date | Type of Forest Produce | Opening Stock | Received during the day | Converted during the day | Dispatched during the day | Closing balance |
|---|---|---|---|---|---|---|
| 1 | 2 | 3 | 4 | 5 | 6 | 7 |
| | Log | | | | | |
| | Sawn timber | | | | | |
| | Veneer | | | | | |
| | Plywood | | | | | |
| | Other forest produce (Specify) | | | | | |

Place: .....

Date: .....

Seal & Signature
(on behalf of the wood based industry)

FORM-XVI

[See rule 8 (A )(xxiii) (a) 15(2)]

DECLARATION OF QUARTERLY RETURN OF FOREST PRODUCE FOR THE QUARTER ENDING ON ……..

(Unit: As applicable for the particular item)

| Type of Forest Produce | Opening Stock | Received during the period | Dispatched during the period | Closing balance at the end of the period |
|---|---|---|---|---|
| 1 | 2 | 3 | 4 | 5 |
| 1. Sawn timber | | | | |
| 2. Veneer | | | | |
| 3. Plywood | | | | |
| 4. Other Forest Produce (Specify) | | | | |

Seal & Signature

(on behalf of the wood based industry)

FORM- XVII

[See rule 8(B)(iv)(a)and (e), 9(1)(a)]

FORM OF APPLICATION FOR ISSUE OF REGISTRATION CERTIFICATE TO ESTABLISH/RELOCATE/EXPAND/OPERATE THE SECONDARY WOOD BASED INDUSTRIES

(Agarwood Based Industrial Units)

Photo

To,

The Divisional Forest Officer,
..... Division)

Sir,

I/We Shri ..... (in block letters) son of..... ..... ..... inhabitant(s) of..... (Address to be given in details) under ..... ..... Police Station, District ..... By profession ..... ....., do hereby apply for Grant of Registration Certificate to establish//expand/operate the wood based industries as mentioned below using ..... as raw materials.

The particulars of the wood – based industry are given herein below:

| | | | |
|---|---|---|---|
| 1. | APPLICANT DETAILS: | | |
| a. | Name of the Applicant (Block Capitals) (Owner, Partners, Director etc.) | : | ..... |
| b. | Father's Name | : | ..... |
| c. | Aadhar Card No. (copy attached) | : | ..... |
| d. | Pan Card No. (copy attached) | : | ..... |
| e. | GST No. (if any) | : | ..... |
| f. | Postal Address | : | ..... |
| g. | Permanent Home Address | : | ..... |
| h. | Mobile No. | : | ..... |
| i. | Email ID | : | ..... |

2. TYPE AND CATEGORY OF THE PROPOSED UNIT TO BE SET UP: (Tick Mark)

(a) Agar Oil Extracting Unit (Micro Unit) (b) Agar Oil Extracting Unit (Small Unit)
(c) Agar Oil Extracting Unit (Medium Unit) (d) Agar Oil Extracting Unit (Large Unit)
(e) Agarwood Processing Unit (f) Composite Agar Wood Based Unit

3. DETAILS OF THE PROPOSED UNIT:

a) Name of the Agar Wood-based Industry : .....
b) Location / Address : .....
c) GPS co-ordinates of the Unit : .....
d) Forest Range / Division : .....
e) District : .....
f) Registration No. with date of validity (for renewal): .....
g) Registration No. of the unit in Commerce & Industries Department (if already registered) : .....
h) Whether the unit is functioning or not
If yes, since when it was functioning : .....
i) Name of the new location in case of relocation along with GPS co-ordination. : .....to .....
j) Reason for relocating the wood based industry : .....

1. NATURE OF OWNERSHIP (documents to be attached) (Tick mark whichever is applicable) –

(a) Proprietary (b) Partnership (c) Co-op. Society (d) Lease (e) Others

2. DETAILS OF DISTILLATION UNITS TO BE INSTALLED:

a. Boilers (Capacity of each unit in Kg and number of units):
b. Total installed capacity in Kg:

4. PROJECTION OF ANNUAL REQUIREMENT OF RAW MATERIALS (Agar Oil Extraction Units):

a. Agar Kunda (Quantity in Kgs):
b. Agar Buta (Quantity in Kgs):
c. Agar Bangtang (Quantity in Kgs):

5. EXPECTED ANNUAL PRODUCTION (Agar Oil Extraction Units):

a. Agar Oil – 1st Jaal (Quantity in grams):
b. Agar Oil – 2nd Jaal (Quantity in grams):
c. Boya (Fatty acid) - (Quantity in litres):
d. Compound - (Quantity in litres):
e. Agar Dust (Quantity in Kgs):

6. EXPECTED ANNUAL PRODUCTION (Agar Wood Processing Units):

a. Agar Chips (Quantity in Kgs):
i. Jura:
ii. Muri:
iii. Char:
iv. Chicar:

7. Total Capital Value of the unit : .....
8. Expected source/sources of raw materials : .....
9. Employment:
(a) Strength of regular employees : .....
(b) Strength of daily workers : .....
10. Whether the applicant is involved in any Criminal/forest/wildlife offence cases : .....

11. Whether the applicant possessing any other Wood based industry in the State, if yes, details thereof : .....

12. Whether the Registration fee is attached, if so, date and details of the payment receipt

Documents to be enclosed (Tick mark whichever is applicable)-

a) Registration Certificate of the unit in Industries Department.
b) Document of ownership / allotment of land (Miyadi Patta/Lease Deed/Power of Attorney
c) Up to date land revenue payment receipt)
d) Copy of Receipt of application fee.
e) Location map of the unit showing the approach road.

I hereby declare that the information provided above is true and that if any information furnished my me is found false subsequently, my application for registration may be rejected.

I also undertake that I will abide by the terms and conditions of the registration and relevant rules, guidelines and instructions issued by the Government, Principal Chief Conservator of Forests and the authorized officer from time to time and that I will not violate the provisions of the Assam Wood Based Industries (Promotion and Development) Rules, 2022 as amended from time to time.

Place: .....
Date: .....

Yours faithfully,

Signature(s) of the applicant(s).

FORM-XVIII

[See rule 8(B)(iv)(g)]

CERTIFICATE OF REGISTRATION

Registration No..... Dated on the .....day of .....(Month) ..... (Year.....( Name, Names ), inhabitant(s) of ..... (Address to be given in details) in the Police Station ..... .....District ..... by profession .....is/ are hereby permitted to set up /run the Agar wood-based industry as indicated below under the terms and conditions as laid down in these rules as well as other terms and conditions specified hereunder, using..... as the raw materials, up to 31st December .....

1. Name of the Agar Wood- Based Industry :.....
2. Legal status (whether ownership of Private Limited Company) : .....
3. Install capacity with description of the machinery. : .....
4. Capital Value of the Agar wood based Industry. : .....
5. Employment:
   i. No. of regular employees : .....
   ii. No. of daily workers : .....
6. Details of receipt of payment of Registration fee: .....

OTHER TERMS AND CONDITIONS

a. Every Registration Certificate Holder shall submit to the authorized officer concerned a quarterly report on opening stock balance, receipt of raw materials, conversion, dispatch of converted product and closing stock balance of forest produce, within seven days of the expiry of the period of the said three months in Form No. XXIV appended to these rules which shall be compiled from the Register maintained in the Form No. XXI, XXII & XXIII – A & B appended to these rules.
b. Breach of any of the above conditions or infringement of any law of the State for the time being in force will render this Registration to be cancelled.
c. In the event of any dispute arising between the holder of this Registration and the Forest Department as regards interpretation of rules made in the License or in its execution, the decision of the Zonal in-charge shall be final and binding on all concerned.
d. Industry shall shift to alternate energy sources such as Solar energy, LPG, Briquettes, Rice husk etc. Use of firewood is to be avoided.
e. Registration Certificate shall not be usually transferable as a matter of right except to legal heirs as decided by the Registration committee.

Date: .....

Signature of the Registering Authority

(Seal)

FORM-XIX

[See rule 8 (B) (iv) (m) and (n)]

FORM OF APPLICATION FOR RENEWAL OF REGISTRATION

To,

The Divisional Forest Officer,
..... Division

Sir,

I/We Shri ..... (in block letters) inhabitant(s) of .....( address in details ) under .....Police Station, District.....by profession ....., do hereby apply for renewal of my/our Registration No. .....Dated ....., the validity of which is expiring on ..... An amount of Rs. ..... (Rupees .....) only being the renewal fee has been deposited online vide receipt No ..... Dated ....., copy of which is enclosed herewith.

Yours faithfully,

Place: .....
Date: .....

Signature of the Applicant(s)

FORM-XX

[See rule 8 (B) (iv) (j) and (r)]

CERTIFICATE OF RENEWAL OF REGISTRATION

Ref. No. ..... Dated .....

Registration No ..... Dated ....., is renewed up to,.....

Place: .....
Date: .....

Signature of the Registering Authority
(Seal)

FORM-XXI

[See rule 8 (B) (vii) (a)]

DAILY RECEIPT REGISTER

| Date | Unit Sl. No. | Details of raw materials* | Weight | Received from which person/firm/Divn/ Depot, etc. | Transit Challan/Transit Pass/ Any other transit document No. & Date | Converted on (Ref. Form XXIII) | Remarks |
|---|---|---|---|---|---|---|---|
| 1 | 2 | 3 | 4 | 5 | 6 | 7 | 8 |

* Agar Kunda, Buta, Bangtang, Chips etc

Place: .....

Date: .....

Seal & Signature
(on behalf of the wood based industry)

FORM-XXII

[See rule 8 (B) (vii) (a)]

DAILY CONVERSION REGISTER

| Date | Unit Sl. No. Form XXI | Raw material* | Output weight** (In gms/litres as applicable) | Dispatch documents No. & Date | Remarks |
|---|---|---|---|---|---|
| 1 | 2 | 3 | 4 | 5 | 6 |

* Agar Kunda, Buta, Bangtang, Chips etc

**Agar oil – 1st Jaal/2nd Jaal; Boya and Compound etc

Place: .....

Date: .....

Seal & Signature

(on behalf of the wood based industry)

FORM-XXIII -A

[See rule 8 (B) (vii) (a)]

DAILY STOCK (DOMESTIC) REGISTER

| Date | Type of Agarwood Raw Material*/Derivatives** | Opening Stock | Received during the day | Converted during the day | Dispatched during the day | Closing balance |
|---|---|---|---|---|---|---|
| 1 | 2 | 3 | 4 | 5 | 6 | 7 |
| | | | | | | |
| | | | | | | |
| | | | | | | |

* Agar Kunda, Buta, Bangtang, Chips etc

**Agar oil – 1st Jaal/2nd Jaal; Boya and Compound etc

Place: .....

Date: .....

Seal & Signature

(on behalf of the wood based industry)

FORM-XXIII -B

[See rule 8 (B) (vii) (a)]

DAILY STOCK (IMPORTED) REGISTER

| Date | Type of Imported Agarwood Raw Material*/Derivatives** | Opening Stock | Received during the day | Converted during the day | Dispatched during the day | Closing balance |
|---|---|---|---|---|---|---|
| 1 | 2 | 3 | 4 | 5 | 6 | 7 |
| | | | | | | |
| | | | | | | |
| | | | | | | |

* Agar Kunda, Buta, Bangtang, Chips etc

**Agar oil – 1st Jaal/2nd Jaal; Boya and Compound etc

Place: .....

Date: .....

Seal & Signature

(on behalf of the wood based industry)

FORM-XXIV

[See rule 8 (B) (vii) (a)]

QUARTERLY STOCK RETURN OF AGARWOOD (INCLUDING PROCESSED PRODUCTS/DERIVATIVES) DURING THE QUARTER ENDING.....

| Common/ Scientific Name | Opening Balance */** | Quantity Imported/ Received */** | Quantity of Processed products in each category*/** | Quantity of Agarwood under Processing */** | Quantity Disposed off including mode of Disposal (Export/ Re-export/Domestic Sale */** | Closing Balance */** |
|---|---|---|---|---|---|---|
| 1 | 2 | 3 | 4 | 5 | 6 | 7 |
| | | | | | | |

* Agar Kunda, Buta, Bangtang, Chips etc

**Agar oil – 1st Jaal/2nd Jaal; Boya and Compound etc

Place:

Date:

Seal & Signature

(on behalf of the wood based industry)

FORM –XXV

[See rule 2 (1) (x)]

LEGAL PROCUREMENT CERTIFICATE

(Agar Wood Derivatives)

(NOT TRANSFERABLE)

Convention on the International Trade in Endangered Species of Wild (Fauna/Flora/Derivatives)

CERTIFICATE NO..... VALID UP TO.....

1) This certificate is hereby issued in favour of M/S/Shri/Smt..... (Give full postal address with Pin code and state) .....Holder of Licence No.....in terms of Wildlife (Protection) Act, 1972 .....Holder of Registration No.....as per the provisions of Rule No. 8 (b) of The Assam Wood-Based Industry (Promotion and Development) Rules 2022 for export of Agar (Aquilaria malaccensis) parts/Derivatives from flora as detailed below:-

2) I hereby certify that the raw materials namely.....grown in/bought/brought from private Agriculture Fields belonging to Shri/Smti.....of address .....of .....District in.....(NAME OF STATE)

(i) The raw materials and/or finished products are transported under valid transit document with details ..... issued by .....authority of .....office, with address.....

(ii) Details of Agar (Aquilaria malaccensis) derivatives to be exported:

| Description of the items (also/state Scientific name) | Common Name | Quantity/ No. of Packages/Crates | Weight Net/Gross (in Kg.) | Identification mark on Packages | Name and address of destination |
|---|---|---|---|---|---|
| 1 | 2 | 3 | 4 | 5 | 6 |
| | | | | | |

Date of issue.....

Signature & Designation of person
sealing the consignment

Signature & Designation
Seal & Full Postal Address of issuing officer

Note: - Delete if not applicable, if LPC is obtained for a CITES Export Permit. Please apply in prescribed form together with this LPC to CITES Management Authority.

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